UNITED STATES BANKRUPTCY COURT

MIDDLE DISTRICT OF LOUISIANA

IN RE:

BRIAN ANDERSON CRISS	**CASE NO. 17-11210**
DEBTOR	**CHAPTER 7**
SINARTA CRISS	**ADVERSARY NO. _____**
PLAINTIFF,	
v.	
BRIAN ANDERSON CRISS	
DEFENDANT	

COMPLAINT TO DETERMINE DISCHARGEABILITY OF DEBT

Plaintiff, Sinarta Criss, by and through counsel, hereby represents as follows:

1. The Court has jurisdiction to hear this Complaint pursuant to 28 USC 157(a), (b)(1), (b)(2)(I) (core proceeding), 1334(b) and 11 USC 523(a)(15).
2. On December 15, 2017, Brian Criss ("the Defendant") filed a chapter 7 petition, commencing the above case.
3. Sinarta Criss, the Plaintiff, is the defendant's former spouse.
4. On September 21, 2017, Plaintiff and Defendant entered into a Stipulated Judgment of Partition of Community Property ("the Partition").
5. Attached hereto as Exhibit "A" is a copy of the executed Stipulated Judgment of Partition of Community Property, signed by both the Plaintiff and Defendant.
6. Plaintiff and Defendant were both represented by counsel at the time of the Partition.
7. Paragraph 2 of the Partition states "IT IS ORDERED, ADJUDGED, AND DECREED that BRIAN ANDERSON CRISS agrees to assume and be solely responsible for the disaster assistance loan issued by the United States Small Business Administration as his separate debt," hereinafter "the SBA loan".
8. Paragraph 10 of the Partition states "IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that the parties shall equally divide the net proceeds of the former marital home after its sale."

9. Subsequent to the signing of the Partition, Plaintiff and Defendant sold the marital home, located at 16939 River Birch Avenue, Greenwell Springs, Louisiana 70739 for $219,000.00.
10. At the time of the sale, the SBA loan was paid off in full.
11. Attached hereto as Exhibit "B" is the Closing Disclosure for the property located at 16939 River Birch Avenue, Greenwell Springs, Louisiana 70739.
12. Pursuant to the Partition, the proceeds from the sale were to be split between the Plaintiff and the Defendant.
13. As is evident from the closing disclosure, the proceeds from the sale were used to pay off Defendant's separate debt.
14. In the Defendant's bankruptcy schedules, specifically Schedule F, he lists a debt to Plaintiff in the amount of $30,000.00.
15. The above referenced debt is a debt "incurred by the debtor in the course of a divorce or separation or in connection with a separation agreement, divorce decree or other order of a court of record." and as such, it is nondischargeable.
16. For reasons above, the listed debt of $30,000.00 to the Plaintiff is nondischargeable pursuant to 11 USC §523(a)(15).

WHEREFORE, Sinarta Criss prays this Honorable Court for a nondischargeable judgment against the Defendant in the amount of $30,000.00, plus interest, attorney fees and costs, or any other such relief as the Court may deem appropriate.

RESPECTFULLY SUBMITTED:
GRAND LAW FIRM, LLC

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